



File No: EXP202400146

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 9, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against LOS NIÑOS DE MONTESSORI, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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Procedure No: EXP202400146 (PS/00031/2024)

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

FACTS

FIRST: On 09/27/23, Ms. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection. The complaint was directed against the entity LOS NIÑOS DE MONTESSORI, S.L., with CIF: B88155734, owner of the website <https://www.montessoritrescantos.com/> (hereinafter, the respondent), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The reasons for the complaint were that the website in question does not notify the use of cookies when accessed nor allows them to be configured in any way.

SECOND: On 03/04/24, the Inspection Subdirectorate of the Spanish Agency for Data Protection carried out the following diligence regarding the "Cookie Policy" of the website

<https://www.montessoritrescantos.com/>, obtained through the "inspect → application" tool of the Google Chrome browser and after clearing the browser cache and cookies, and after forcing the browser to download the latest version of the webpage hosted on the remote server.

a).- Regarding the use of cookies before the user gives their consent:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website, it has been verified that the following cookies are used:

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- Technical nature cookies:

cookies

Domain

Description

PHPSESSID

www.montessoritrescantos.com

Cookie generated by applications based on the PHP language. This is a general-purpose identifier used to maintain user session variables. It keeps the user's login state between pages.

_dc_gtm_UA-120286436-1

www.montessoritrescantos.com

This cookie is associated with sites that use Google Tag Manager to load other scripts and codes on a page. When used, it can be considered strictly necessary as, without it, other scripts may not function correctly.

- Google Analytics cookies (although presented under the domain www.montessoritrescantos.com):

cookies

Domain

Description

_gid

www.montessoritrescantos.com

This cookie is set by Google Analytics. It stores and updates a unique value for each page visited and is used to count and track the pages viewed.

_ga_VRPBZYBMB5

www.montessoritrescantos.com

Google Analytics uses this cookie to maintain the session state.

_ga

www.montessoritrescantos.com

This cookie name is associated with Google Universal Analytics. This cookie is used to distinguish unique users by assigning a randomly generated number as a client identifier. It is included in each page request of a site and is used to calculate visitor, session, and campaign data for the site's analytical reports.

_dc_gtm_UA-120286436-1

www.montessoritrescantos.com

Google Analytics sets this cookie to load the Google Analytics command sequence tag.

- Analytical cookies:

cookies

Domain

Description

hjSessionUser*

www.montessoritrescantos.com

Hotjar sets this cookie to ensure that data from subsequent visits to the same site is attributed to the same user ID, which persists in the Hotjar user ID, which is unique to that site.

- Targeting or advertising cookies:

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cookies

Domain

Description

_gcl_au

www.montessoritrescantos.com

Used by Google AdSense to experiment with the efficiency of advertising on websites that use its services.

_fbp

www.montessoritrescantos.com

Used by Meta to offer a range of advertising products, such as real-time offers from external advertisers.

NID

www.google.com

Google extensively tracks users both through its own products and sites as well as through the numerous technologies integrated into millions of websites worldwide. It uses the data collected from most of these services to profile the interests of web users and sell advertising space to organizations based on those interest profiles, as well as to align ads with the content of the pages where its clients' ads appear.

- Cookies whose purpose could not be identified:

cookies

Domain

Description

mphb_session

www.montessoritrescantos.com

cherry_

www.

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cookies

Domain

Description

trend_views

montessoritrescantos.com

_hjSession

_903779

www.

montessoritrescantos.com

_hjSession

User_903779

www.

montessoritrescantos.com

AEC

www.google.com

Third-party cookie

VD

www.google.com

Third-party cookie

SOCS

www.google.com

Third-party cookie

b).- Regarding the cookie information banner on the first layer:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without taking any action on the webpage, it is verified that NO type of generic cookie information banner appears on the main page.

c).- Regarding the information provided in the "Cookie Policy"

There is no type of information about cookies on the website. There is also no link to the "Cookie Policy" or page where users can be informed about the website's cookie policy.

d).- Regarding the possibility of modifying the consent given for cookies at any time during web browsing.

There is no mechanism that allows the user to manage their consent regarding the use of cookies.

LEGAL GROUNDS

I

Competence.

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In accordance with the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this

organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

The Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing rules shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

a).- Regarding the installation of cookies on the terminal equipment prior to the user's consent:

Article 22.2 of the LSSI establishes that users must be provided with clear and complete information about the use of data storage and retrieval devices and, in particular, about the purposes of data processing.

This information must be provided in accordance with the provisions of the GDPR.

Therefore, when the use of a cookie involves processing that allows for the identification of the user, the data controllers must ensure compliance with the requirements established by data protection regulations.

However, it is necessary to point out that those cookies necessary for the intercommunication of terminals and the network and those that provide a service expressly requested by the user would be exempt from compliance with the obligations established in Article 22.2 of the LSSI.

In this regard, the Article 29 Working Party, in its Opinion 4/2012, interpreted that among the cookies exempted would be user input cookies (those used to fill out forms or for managing a shopping cart); authentication or user identification cookies (session cookies); user security cookies (those used to detect erroneous and repeated attempts to connect to a website); multimedia player session cookies; session cookies for load balancing; user interface customization cookies; and some plug-in cookies for sharing social content.

These cookies would be excluded from the scope of application of Article 22.2 of the LSSI, and therefore, it would not be necessary to inform or obtain consent for their use. Conversely, it will be necessary to inform and obtain prior consent from the user for the use of cookies.

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user before the use of any other type of cookies, whether first-party or third-party, session or persistent.

Regarding the cookies used for the purpose of obtaining traffic or performance statistics, they may be exempt from consent under certain conditions. To be limited to what is strictly necessary for the provision of the service and, therefore, be exempt from consent in accordance with Article 22.2 of the LSSI, these cookies, or similar technologies, must have a purpose strictly limited to the exclusive measurement of the audience of the site or application. This processing must be carried out exclusively on behalf of the publisher and used to produce anonymous statistical data only.

On the contrary, to be exempt from consent, these cookies or similar technologies must not result in the data being matched with other processing operations or in the data being transmitted to third parties. Furthermore, they must not allow the aggregated tracking of the browsing of the person using different applications or browsing different websites.

Therefore, any solution that uses the same identifier across multiple sites (for example, through cookies placed on a third-party domain loaded by several sites) to cross-reference, duplicate, or measure a unified reach rate of content is excluded.

Some analytics and audience measurement services, implemented by the publisher itself or by providers, do not fall within the scope of the exemption. This occurs, in particular, when they declare that they reuse the data for other purposes, as is the case with various audience measurement offerings available in the market.

Therefore, and in general, the AEPD considers that for the correct administration of a website, only the

following measurements are strictly necessary:

- Audience measurement, page by page;
- The list of pages from which a link has been followed to request the current page (sometimes called "referrer"), whether internal or external to the site, by page and aggregated daily;
- Determination of the type of device, browser, and screen size of visitors, by page and aggregated daily;
- Statistics on page load time, by page and aggregated hourly;
- Statistics on the time spent on each page, bounce rate, scroll depth, by page and aggregated daily;
- Statistics on user actions (clicks, selections), by page and aggregated daily;
- Statistics on the geographical area of origin of the requests, by page and aggregated daily.

Therefore, any other processing of the data beyond these listings by both the publisher and the provider must have the consent of the interested party to be considered lawful.

Regarding Google Analytics Cookies, it is noteworthy that in the "Terms of Service of Google Analytics," which are established between Google Ireland Limited and the entity that formalizes the Contract for the use of analytical cookies, it is...

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It is stated in the section "Privacy" that the contractor "must disclose the use of Google Analytics and how this Service collects and processes data. You can do this by displaying a prominent link to the page 'How Google Uses Information from Sites or Apps That Use Our Services,' which can be found at www.google.com/policies/privacy/partners or any other URL that Google may provide at the time:

"7. Privacy

You must not send hashed or otherwise encrypted information to Google that Google may consider personally identifiable information or use it as such, nor allow a third party to do so or assist them in doing so, except as permitted by the policies or terms of the Google Analytics features made available to you, and only if the information sent to Google in connection with that Google Analytics feature has been hashed according to industry standards. You must have an appropriate Privacy Policy and comply with it. You must also comply with all applicable laws, policies, and regulations related to the collection of information from Users. You must also publish a Privacy Policy that notifies of the use of cookies, mobile device identifiers (for example, the Advertising Identifier for Android or the Advertising Identifier for iOS), or similar technology that you use to collect data. Furthermore, you must disclose the use of Google Analytics and how this Service collects and processes data. You can do this by displaying a prominent link to the page 'How Google Uses Information from Sites or Apps That Use Our Services,' which can be found at www.google.com/policies/privacy/partners/ or any other URL that Google may provide at the time. You must take commercially reasonable measures to ensure that Users receive complete and clear information about the storage of cookies and access to them or any other information on Users' devices, and that they provide their consent in this regard when such activity occurs in connection with the Service and when the law requires providing such information and obtaining such consent."

Through the aforementioned link, the following information is accessed:

Google's advertising services are testing new ways to publish and measure digital advertising that better protect users' online privacy through the Privacy Sandbox initiative on Chrome and Android. Users who have enabled the relevant Privacy Sandbox settings on Chrome or Android will be able to see relevant ads from Google's advertising services based on Topics or Protected Audience data stored in their browser or mobile device. It is possible that Google's advertising services will also measure ad performance with attribution reporting data stored in their browser or mobile device. More information about Privacy Sandbox.

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HOW GOOGLE USES INFORMATION FROM WEBSITES OR APPLICATIONS THAT USE OUR SERVICES

A large number of websites and applications use Google services to enhance their content and offer it for free. By integrating our services, these websites and applications share information with Google. For example, when you access a website that uses advertising services like AdSense, includes analytics tools like Google Analytics, or embeds video content from YouTube, the web browser automatically sends certain information to Google. The data we receive includes the URL of the page you accessed and its IP address, among others. We may also place cookies in your browser or read those already stored in it. Applications that use Google advertising services also share information with us, such as the name of the application and a unique identifier for advertising.

Google uses the information shared by websites and applications to provide, maintain, and improve its services, develop new services, measure the effectiveness of advertising, protect users from fraud and abuse, and personalize the content and ads that appear on Google or on our partners' websites and applications. Please refer to the privacy policy for more information on how we process data for each of these purposes and the advertising page for more information about Google ads, how your information is used in the context of advertising, and how long Google retains this information.

Our Privacy Policy explains the legal grounds on which we rely at Google to process our users' information. For example, we may process it with your consent or to pursue legitimate interests such as providing, maintaining, and improving our services to meet user needs.

Sometimes, when we process information that a website or application has shared with us, that website or application first asks users if they consent to our processing of their information. For example, a banner may appear on a website asking users if they consent to Google processing the data that the website collects. In such cases, we will respect the purposes described in the consent given to the respective website or application, rather than relying on the legal grounds stipulated in our Privacy Policy. If any user wishes to modify or withdraw their consent, they must do so from the relevant website or application. (...)

Therefore, Google uses the information shared by websites and applications to provide, maintain, and improve its services, develop new services, measure the effectiveness of advertising, protect users from fraud and abuse, and personalize the content and ads that appear on Google or on our partners' websites and applications. Thus, these cookies are not exempt as the information is used for other purposes.

In this case, checks conducted on the websites confirmed that upon entering them for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on them, both first-party and third-party cookies that were not of a technical nature were used, such as the following:

- Google Analytics Cookies:

_gid
_ga_VRPBZYBMB5
_ga
_dc_gtm_UA-120286436-1

- Analytical Cookies:

_hj_Session_User_*
(Provider Hotjar)

- Targeting Cookies:

_gcl_au

_fbp

NID

(Provider Google)

- Cookies whose purpose could not be identified:

mphb_session

cherry_
trend_views
_hjSession
_903779
_hjSession
User_903779
AEC
(Provider Google)
VD
(Provider Google)
SOCS (Provider Google)

b).- Regarding the cookie information banner present on the first layer (main page):

The cookie banner on the first layer must include information regarding the identification of the editor responsible for the website, in case their identifying data is not found in other sections of the page or their identity cannot be clearly inferred from the site itself. It must also include a generic identification of the purposes of the cookies that will be used and whether they are first-party or also third-party, without the need to identify them in this first layer.

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Additionally, it must include generic information about the type of data that will be collected and used in case user profiles are created, and it must include information on how the user can accept, configure, and reject the use of cookies, with the warning, if applicable, that if a certain action is taken, it will be understood that the user accepts the use of cookies.

Apart from the generic information about cookies, this banner must contain a clearly visible link directed to a second layer of information regarding the use of cookies. This same link may be used to lead the user to the cookie settings panel, provided that access to the settings panel is direct, meaning that the user does not have to navigate within the second layer to locate it.

In the case at hand, upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without taking any action on the webpage, it is verified that no type of cookie information banner appears on the main page.

c).- Regarding consent for the installation of cookies on the terminal equipment:

For the use of non-exempt cookies, it will be necessary to obtain the user's consent explicitly. This consent can be obtained by clicking on "accept" or inferring it from an unequivocal action taken by the user that indicates that consent has been unequivocally given. Therefore, mere inactivity of the user, scrolling, or navigating the website will not be considered a clear affirmative action under any circumstances and will not imply the provision of consent by itself. Similarly, accessing the second layer if the information is presented in layers, as well as the necessary navigation for the user to manage their preferences regarding cookies in the control panel, is also not considered an active behavior from which cookie acceptance can be derived.

The existence of "Cookie Walls" is also not permitted, that is, pop-up windows that block content and access to the website, forcing the user to accept the use of cookies in order to access the page and continue browsing without offering the user any alternative that allows them to freely manage their preferences regarding the use of cookies.

If the option is to go to a second layer or cookie control panel, the link must take the user directly to that settings panel. To facilitate selection, in the panel, in addition to a granular cookie management system, two more buttons may be implemented, one to accept all cookies and another to reject them all. If the user saves their choice without selecting any cookies, it will be understood that they have rejected all cookies. In relation to this second possibility, pre-checked boxes in favor of accepting cookies are not admissible under any circumstances.

If for cookie configuration, the website refers to the settings of the browser installed on the terminal

equipment, this option could be considered complementary.

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to obtain consent, but not as the only mechanism. Therefore, if the publisher opts for this option, they must also offer, in any case, a mechanism that allows the rejection of the use of cookies and/or to do so in a granular manner.

On the other hand, the withdrawal of previously granted consent by the user must be possible at any time. To this end, the publisher must provide a mechanism that allows for easy withdrawal of consent at any time. It will be considered that such ease exists, for example, when the user has simple and permanent access to the cookie management or configuration system.

If the publisher's cookie management or configuration system does not allow for the prevention of the use of third-party cookies once accepted by the user, information will be provided about the tools offered by the browser and third parties, warning that if the user accepts third-party cookies and later wishes to delete them, they must do so from their own browser or the system enabled by third parties for that purpose.

In the case at hand, it is NOT possible to reject cookies that are not technical or necessary, as there is no mechanism that allows it.

d).- Regarding the information provided in the second layer (cookie policy):

According to the recommendations made in the "Guide," the second layer must provide more detailed information about the characteristics of the cookies, including information about the definition and generic function of cookies (what cookies are); about the type of cookies used and their purpose (what types of cookies are used on the website); the identification of who uses the cookies, that is, whether the information obtained by the cookies is processed only by the publisher and/or also by third parties with identification of the latter; the retention period of the cookies on the terminal equipment; and if applicable, information about data transfers to third countries and the profiling that involves automated decision-making.

In the case at hand, there is NO information about cookies on the website. There is also no link to the "Cookie Policy" or a page where information about the website's cookie policy can be found.

e).- Regarding the possibility of withdrawing consent for the use of cookies once granted.

Users must be able to withdraw previously granted consent at any time. To this end, the publisher must ensure that it provides information to users in its cookie policy on how they can withdraw consent. The user must be able to revoke consent easily. The system offered to withdraw consent must be as easy as the one used when consent was granted. It will be considered that such ease exists, for example, when the user has simple and permanent access to the cookie management or configuration system.

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In the case at hand, there is NO mechanism that allows for the management of the user's consent regarding the use of cookies.

III

Classification of the possible infringement committed

From the deficiencies detected regarding the cookie policy on the website

<https://www.montessoritrescantos.com/>, that is, the use of cookies that are not technical or necessary without the user having granted their consent; the impossibility of rejecting them or managing consent; and the lack of information about cookies, both on the main page and in the "Cookie Policy," could imply on the part of the accused the commission of the infringement of Article 22.2 of the LSSI, as it

establishes the following:

“Service providers may use data storage and retrieval devices on the terminal equipment of the recipients, provided that they have given their consent after being provided with clear and complete information about their use, in particular, about the purposes of data processing, in accordance with the provisions of Organic Law 15/1999, of December 13, on the protection of personal data.

When technically possible and effective, the recipient's consent to accept data processing may be provided through the appropriate parameters of the browser or other applications.

The above shall not prevent the possible storage or technical access solely for the purpose of transmitting a communication over an electronic communications network or, to the extent strictly necessary, for the provision of a service of the information society expressly requested by the recipient.”

IV.

Proposal and Graduation of the Sanction

This infringement is classified as "minor" in Article 38.4 g) of the aforementioned Law, which considers as such: “Using data storage and retrieval devices when the information has not been provided or the consent of the recipient of the service has not been obtained in the terms required by Article 22.2,” and may be sanctioned with a fine of up to €30,000, in accordance with Article 39 of the aforementioned LSSI.

The LSSI, in its Article 40, establishes the “graduation of the amount of sanctions,” taking into account the following criteria:

- a) The existence of intent.
- b) The length of time during which the infringement has been committed.
- c) The recurrence of committing infringements of the same nature, when declared by a firm resolution.
- d) The nature and amount of the damages caused.

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- e) The benefits obtained from the infringement.

- f) The volume of billing affected by the committed infringement.

- g) Adherence to a code of conduct or an applicable advertising self-regulation system regarding the committed infringement, which complies with the provisions of Article 18 or the eighth final provision and has been favorably reported by the competent body or bodies.

Based on the evidence obtained, and without prejudice to the outcome of the instruction, it is considered appropriate to graduate the sanction to be imposed according to the following aggravating criteria established by Article 40 of the LSSI:

- The existence of intent (paragraph a). This expression should be interpreted as equivalent to the degree of culpability according to the ruling of the National Court dated 12/11/07 in Case No.

351/2006, corresponding to the reported entity the determination of a system for obtaining informed consent that complies with the mandate of the LSSI.

- Recidivism for committing infringements of the same nature, when declared by a firm resolution (paragraph c). In this regard, within the framework of file A/00026/2019, whose resolution occurred on 01/12/19, the reported entity was warned, in accordance with the provisions of Article 39 bis, paragraph 2, of the LSSI, regarding the infringement of Article 22.2 of the LSSI, classified as minor in Article 38.4.g) of the aforementioned regulation.

According to these criteria, and without prejudice to the outcome of the instruction of this file, it is deemed appropriate to impose, for the infringement of Article 22.2 of the LSSI, regarding the cookie policy implemented on its owned website, an initial sanction of 5,000 euros (five thousand euros).

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the entity, LOS NIÑOS DE MONTESSORI, S.L., with CIF: B88155734, owner of the website

<https://www.montessoritrescantos.com/>, for the violation of Article 22.2 of the LSSI classified in Article 38.4.d) of the same regulation.

SECOND: TO APPOINT: as Instructor Mr. B.B.B., and Secretary, if applicable, Mr. C.C.C., indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed and its documentation, the documents obtained and generated by the General Subdirectorate of Data Inspection during the investigation phase, all of which are part of this administrative file.

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FOURTH: For the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, without prejudice to what results from the instruction of this file, 5,000 euros (five thousand euros).

FIFTH: NOTIFY this agreement to initiate sanctioning proceedings to the entity LOS NIÑOS DE MONTESSORI, S.L., with CIF: B88155734, granting a hearing period of ten working days for it to formulate allegations and present any evidence it deems appropriate.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, if the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; which will entail a reduction of 20% of the sanction to be imposed in this procedure, equivalent in this case to 1,000 euros. With the application of this reduction, the sanction would be established at 4,000 euros, resolving the procedure with the imposition of this sanction. Similarly, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount, equivalent in this case to 1,000 euros. With the application of this reduction, the sanction would be established at 4,000 euros, and its payment will imply the termination of the procedure.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be established at 3,000 euros (three thousand euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

If the option is taken to proceed with the voluntary payment of any of the amounts indicated above (4,000 euros or 3,000 euros), it must be made effective by depositing it into account No. ES00 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled. Likewise, the proof of payment must be sent to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

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The procedure will have a maximum duration of nine months from the date of the initiation agreement.

After this period, if no resolution has been issued and notified, it will expire and, consequently, the file will be archived; in accordance with the provisions of Article 43.2 of the LSSI.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be carried out exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address before this Agency to receive notice of the availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid. Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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SECOND: On June 25, 2024, the party being claimed has proceeded to pay the sanction in the amount of 3,000 euros, making use of the two reductions provided in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations to the opening of the procedure, entails the renunciation of any action or administrative appeal against the sanction and the acknowledgment of responsibility regarding the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

According to the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions..."

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in Regulation (EU) 2016/679, in this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily, by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies assigned to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions of Title VIII and its implementing rules shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies assigned to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with respect to the restoration of the altered situation or the

determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202400146, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to LOS NIÑOS DE MONTESSORI, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

936-040822

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